

9.	25CV1182	WELLS FARGO BANK, NA VS. HERMELINDA PENA, AN INDIVIDUAL
MOTION FOR JUDGEMENT ON THE PLEADINGS		

On April 8, 2026, Plaintiff filed its Notice of Motion and Motion for Judgment on the Pleadings. A Memorandum of Points and Authorities, Request for Judicial Notice, and several other documents were filed concurrently therewith in support of the motion.

This matter stems from Plaintiff's efforts to collect \$5,951.93 in credit card debt from Defendant. The Complaint was filed on May 7, 2025. Defendant filed her Answer on May 27th generally denying all allegations in the Complaint and asserting seven affirmative defenses. Plaintiff thereafter propounded Requests for Admission which were ultimately deemed admitted due to Defendant's failure to provide responses. Plaintiff now seeks judgment on the pleadings in the amount of \$6,236.93 (\$5,951.93 for the original debt plus \$285 in filing fees).

Request for Judicial Notice

Plaintiff asks the court to take judicial notice of the following: (1) Plaintiff's Complaint in the above referenced matter; (2) Plaintiff's Motion to Deem Request for Admissions Admitted; and (3) the court's order deeming Plaintiff's Request for Admissions admitted.

Judicial notice is a mechanism which allows the court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States."

Section 452 provides that the court "may" take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court "shall" take judicial notice of any matter "specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." Cal. Evid. Code § 453.

While the requests made by Plaintiff fall within the purview of Section 452, matters which *may* be judicially noticed, the court does find that Plaintiff provided Defendant and the court sufficient notice of the request and copies of the documents requested to be noticed. As such, Plaintiff has satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

Motion for Judgment on the Pleadings

A party may move for judgment on the pleadings on the basis “...that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” Cal. Civ. Pro. § 438(c)(1)(A). The grounds for such a motion must appear on the face of the pleading or from any matter of which the court takes judicial notice. *Id.* at (d).

When ruling on a motion for judgment on the pleadings, the court is to accept as true all material allegations contained in the challenged pleading but not those facts which are contrary to matters which have been judicially noticed. *Mechanical Contractors Assn. v. Greater Bay Area Assn.*, 66 Cal. App. 4th 672 (1998). “The courts...will not close their eyes to situations where [the pleading] contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed. [Citations].” *Del E. Webb Corp. v. Structural Materials Co.*, 123 Cal. App. 3d 593, 604 (1981). In instances where a party’s Request for Admission responses are incontrovertible, the court may properly take judicial notice thereof and may consider them in ruling on a motion for judgment on the pleadings. *Del E. Webb Corp. v. Structural Materials Co.*, 123 Cal. App. 3d 593, 604 (1981) *citing* *Stencel Aero Engineering Corp. v. Sup. Ct.*, 56 Cal. App. 3d 978 (1976) *and* *Able v. Van Der Zee*, 256 Cal. App. 2d 728 (1967).

A motion for judgment on the pleadings may be granted with or without leave to amend. Cal. Civ. Pro. § 438(h)(1). Generally speaking, leave to amend is to be liberally granted. *Mendoza v. Continental Sales Co.*, 140 Cal. App. 4th 1395 (2006) (“When there is a reasonable possibility that a defect in pleading can be cured by amendment, the trial court considering the motion for judgment on the pleadings abuses its discretion by not granting leave to amend...”). However, where the defective pleading is not reasonably susceptible to cure, it is proper for the court to decline leave to amend. *Id.* When leave to amend is not granted, “...then judgment shall be entered forthwith in accordance with the motion granting judgment to the moving party.” Cal. Civ. Pro. § 438(h)(3).

Here, the Complaint asserts causes of action for breach of written contract, and breach of implied in fact contract. The Complaint alleges that Plaintiff issued Defendant a credit card, Defendant used the credit card to purchase goods and services, Defendant agreed to repay the principal and interest on the credit card but she has failed to do so. A copy of the Consumer Credit Card Customer Agreement is attached as Exhibit A to the Complaint.

The Answer generally denies each statement in the Complaint and asserts affirmative defenses which are addressed in further detail below. However, before addressing those defenses, the court must look to the facts which have been conclusively established by way of the Requests for Admissions deemed admitted and sufficiency of the Answer must be viewed in light of those facts. The court’s October 10th order deemed the following facts conclusively admitted: (1) Plaintiff issued Defendant a credit card; (2) Defendant was to repay the amount charged on the credit card; (3) Defendant, or those authorized by her, were the only people who used the credit

card to make charges; (4) Defendant received monthly statements from Plaintiff for the subject credit card; (5) Defendant never disputed the accuracy of any of the monthly billing statements for the credit card; (6) Defendant owes \$5,951.93 on the credit card; (7) Defendant's last payment on the credit card was February 15, 2024; (8) Defendant does not have any defenses to Plaintiff's Complaint; and (9) A true and correct copy of the last billing statement for the credit card is attached to the requests as Exhibit "1."

Turning now to the sufficiency of the Answer, the first cause of action asserted is Plaintiff's lack of standing. According to the Answer, Plaintiff failed to demonstrate that it is the original creditor or legal owner of the debt. The admissions conclusively refute this. Defendant admitted that Plaintiff issued her a credit card and she was to repay them the amount.

The second affirmative defense is for failure to state a cause of action. Defendant argues that Plaintiff failed to provide the alleged agreement, however a copy of the agreement is attached as Exhibit A to the Complaint. She argues that Plaintiff failed to establish that it performed or was excused from performing under the agreement. Again, this is refuted by Defendant's admissions that she was issued a credit card by Defendant and she made charges on that card.

Under the third cause of action, Defendant argues the claims made by Plaintiff are barred by the statute of limitations. She states "...the statute of limitations had expired relative to one or more of [Plaintiff's] causes of action." However, Defendant provides no factual basis for this conclusory statement nor does she specify which causes of action she finds to be barred.

The fourth, fifth, and sixth causes of action claim that Plaintiff waived its right to sue, failed to mitigate its damages, and plead its supporting facts with ambiguity. As with the third cause of action, these causes of action are plead without any supporting facts or basis in the law.

Given that each of the affirmative causes of action fails to state facts sufficient to dispute the claims asserted in the Complaint, and given that Defendant's own admissions conclusively establish the elements needed to prove the causes of action asserted in the Complaint, Plaintiff's Motion for Judgment on the Pleadings is granted without leave to amend. The court will enter judgment in favor of Plaintiff, Wells Fargo Bank, N.A., against Defendant Hermelinda Pena, in the sum of \$5,951.93 plus court costs in the sum of \$285.00, for a total judgment of \$6,236.93.

TENTATIVE RULING #9: PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE IS GRANTED IN ITS ENTIRETY. PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS IS GRANTED WITHOUT LEAVE TO AMEND. THE COURT WILL ENTER JUDGMENT IN FAVOR OF PLAINTIFF, WELLS FARGO BANK, N.A., AGAINST DEFENDANT HERMELINDA PENA, IN THE SUM OF \$5,951.93 PLUS COURT COSTS IN THE SUM OF \$285.00, FOR A TOTAL JUDGMENT OF \$6,236.93.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.